
Appeal Decision

Site visit made on 5 August 2026

by R Lawrence BSc (Hons), PGDip (TP), MRTPI

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6008688

Frith Manor, Lingfield Road, East Grinstead, Surrey RH19 2JW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mrs Suzanne Harrison & Mrs Catriona Harrison against the decision of Tandridge District Council.
 - The application Ref is TA/2024/1226.
 - The development proposed is described as "Erection of two storey new detached dwelling. A+ energy efficiency. Exceptional quality. M4(3) disabled living."
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for a partial award of costs has been made by Mrs Suzanne Harrison & Mrs Catriona Harrison against Tandridge District Council. That application will be the subject of a separate decision.

Preliminary Matters

3. Since the appeal was lodged, a revised National Planning Policy Framework (the Framework) was published. The parties were given the opportunity to comment on any implications for this appeal arising from the revised Framework, and I have taken those comments into account in determining the appeal.
4. The Council amended both the description of development and the site address during the application process. In the absence of any evidence that these amendments were agreed by the appellants and having regard to their clear preference for the appeal to be determined on the basis of the original application, I have proceeded on that basis.
5. During the appeal, the appellants relied upon additional transport evidence, including a Transport Note and visibility information relating to the existing access. To the extent that this material had not previously been considered by the Council, the main parties have had the opportunity to comment upon it and I am satisfied that taking it into account would not cause procedural unfairness. I have therefore taken it into account in determining the appeal. The Council has subsequently withdrawn its objection relating to visibility at the access. The main issues reflect that position.

Main Issues

6. The main issues are:

- whether the proposal would constitute inappropriate development in the Green Belt, having regard to the Framework and any relevant development plan policies;
- the effect of the proposal on the openness of the Green Belt and its purposes;
- whether the proposal would be in a suitable location, having regard to access to services, facilities and opportunities to promote sustainable transport;
- the effect of the proposal on the integrity of the Ashdown Forest Special Protection Area, and
- whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development

7. Policy DP10 of the Tandridge Local Plan Part 2: Detailed Policies 2014 (TLP) provides that inappropriate development in the Green Belt will only be permitted where very special circumstances exist that clearly outweigh the harm arising from inappropriateness and any other harm. The policy reflects the over-arching aims of Green Belt policy and, whilst it predates the revised Framework and does not refer to grey belt land, I find it remains broadly consistent with the Framework insofar as it seeks to protect the openness of the Green Belt and resist inappropriate development.
8. The Framework similarly identifies inappropriate development as, by definition, harmful to the Green Belt. However, it provides a number of circumstances where development is not inappropriate. In the present case, the parties' cases have primarily focused on whether the appeal site comprises grey belt land and whether the proposal satisfies the relevant requirements of Policy GB7.
9. The appeal site comprises an area of grassed land adjacent to, but physically separate from, Frith Manor. The appellants contend that it comprises previously developed land. Whilst the site shares ownership with Frith Manor, would utilise the existing access, and appears to be maintained as part of the wider grounds, the evidence before me does not clearly demonstrate that it forms part of the residential curtilage of that property. Moreover, the Council has not advanced a case that the site constitutes residential curtilage. Having regard to my site observations, I noted limited characteristics typically associated with domestic curtilage. As the Framework definition of previously developed land includes land within the curtilage of developed land, I am not persuaded that the appeal site comprises previously developed land. Even if it did, Policy GB7 of the Framework requires several criteria to be met before development on grey belt land is not inappropriate.
10. I am satisfied that the proposal would not strongly contribute to Green Belt purposes (a), (b) or (d). It is not adjacent to a large built-up area, would not prevent neighbouring towns from merging, and would not affect the setting or special

character of a historic town. Although it would involve some limited encroachment into the countryside, that does not preclude the site from being grey belt. Given the modest scale of the proposal and the limited extent of land involved, I have no substantive evidence that one dwelling would fundamentally undermine the purposes, taken together, of the remaining Green Belt across the plan area. The Council's most recent submissions appear to reach a similar conclusion.

11. Policy GB7 also requires there to be a demonstrable unmet need for the type of development proposed. The Council's evidence indicates that it is unable to demonstrate a five-year housing land supply and refers to a supply of approximately 1.92 years. Consequently, there is undisputed evidence of a significant unmet housing need within the district. Whilst the appellant has additionally relied upon evidence of demand for self-build housing, given the acknowledged shortfall in housing supply more generally, I need not reach a firm conclusion on the extent of any specific self-build need for the purposes of this part of my assessment.
12. All of the relevant grey belt requirements in Policy GB7 must be met for the proposal not to be inappropriate development. As I am not persuaded that the site is previously developed land, that would itself render the proposal inappropriate. Nonetheless, I go on to consider whether the sustainability requirements of Policy GB7, with particular reference to Policy TR3, are met.

Location

13. The proposal would be situated outside any defined settlement boundary. I therefore recognise that it conflicts with Policy CSP1 of the Tandridge District Core Strategy 2008 (CS), which seeks to direct development towards existing settlements. However, the Council accepts that CSP1 is now out of date in the context of its housing land supply position and I attach it only limited weight. Furthermore, I note that this policy approach does not fully reflect the current Framework, which requires a more nuanced and site-specific assessment of sustainability rather than one based solely upon settlement boundaries. Nevertheless, the conflict with the development plan remains relevant.
14. I have had regard to the previous appeal decisions relating to the site¹. The most recent Inspector found that there would be alternatives to the private car to access local services and facilities, and I see no substantive evidence before me that the distances to those facilities have materially changed. Indeed, East Grinstead town centre and its range of services are approximately 2 km from the site, whilst facilities at Baldwins Hill are closer still. Distances of this order could, in principle, be capable of being undertaken on foot by some users. Nevertheless, the quality of the walking environment is an important consideration. Whilst Lingfield Road benefits from street lighting and a continuous footway, the footway is relatively narrow and runs immediately adjacent to a busy road. Consequently, although walking is possible, the route is not one that would be particularly attractive or convenient for many users.
15. The site also benefits from good proximity to public transport. The nearest bus stops are located a short distance from the site and are comfortably within walking distance. I am satisfied that occupiers would have a practical means of accessing those stops. The stops are served by two routes, providing connections to East

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Grinstead and other nearby destinations. However, the public transport offer is relatively limited. One service operates only on weekdays, neither service operates on Sundays, and frequencies are modest even during periods of operation. Whilst these services provide an alternative to private car use, they are unlikely to represent a particularly attractive option for many day-to-day journeys.

16. I also note that East Grinstead railway station lies approximately 2 km from the appeal site. This provides access to the wider rail network and offers a further alternative to the private car. However, for the reasons already set out regarding the quality of the pedestrian environment, the station would not be conveniently accessible for all users, particularly those with reduced mobility.
17. Drawing these matters together, I find that the site provides some choice of transport modes. Walking, cycling, bus and rail travel are available in principle. However, the attractiveness and convenience of those alternatives is constrained by the quality of the pedestrian environment, the limited frequency of public transport services and the distances involved. Whilst Policy TR3(a) does not require private car use to be eliminated, particularly in rural areas, I am not persuaded that future occupiers would have a genuinely attractive choice of transport modes such that reliance on the private car would be significantly reduced. Consequently, whilst this is a finely balanced matter, I conclude that the proposal would not satisfy Policy TR3 and therefore the site would not be in a sustainable location for the purposes of Policy GB7 of the Framework.
18. I note finally that Policy TR3(2) requires use of the Connectivity Tool alongside other qualitative and quantitative evidence. No Connectivity Tool assessment has been provided by either party. Whilst this does not prevent me reaching a conclusion on the evidence before me, it does mean that there is no objective connectivity score available to assist in resolving the dispute between the parties.
19. The proposal would fail to meet the requirements of Policy GB7 of the Framework and would therefore be inappropriate development in the Green Belt. Such development is, by definition, harmful and attracts substantial weight. Even if the site were previously developed land, the proposal would still fail to satisfy Policy GB7 because of the shortcomings I have identified in relation to the site's location and Policy TR3. Consequently, that would not alter my conclusion that the development is inappropriate.

Openness

20. Having found that the proposal would constitute inappropriate development, substantial weight should be given to that harm in accordance with Policy GB6(2). I have also considered whether the proposal would cause any other harm to the Green Belt, including harm to openness.
21. I recognise that the site has a degree of enclosure and benefits from screening from Lingfield Road, Frith Manor and Farm View Cottage. However, that enclosure is achieved primarily through vegetation, the effectiveness of which is liable to change over time and seasonally. From my site inspection, I am satisfied that glimpsed views of the site and any future dwelling would remain possible from surrounding areas and the access serving adjacent properties.
22. I also accept that the land has a domestic character to some extent, being maintained as garden land rather than used for agriculture. Nevertheless, it

remains free from built development and forms part of an area where development is relatively sporadic. Consequently, notwithstanding its managed appearance, the site presently contributes to Green Belt openness through its undeveloped character. I have also had regard to the Beacon Platt decision² relied upon by the appellant. However, unlike the present proposal, the Inspector concluded that all of the relevant requirements of the grey belt policy had been satisfied. In particular, the site was found to be in a sustainable location. Whilst I have taken that decision into account, it does not persuade me to reach a different conclusion on the facts before me.

23. Whilst any harm would be localised, the proposal would introduce a substantial permanent two-storey dwelling onto land that is currently undeveloped, together with the domestic activity, vehicles and paraphernalia ordinarily associated with residential occupation. Regardless of whether the site can properly be regarded as residential curtilage, it does not presently function as the immediate private garden of a dwelling and is not currently subject to those domestic influences.
24. Accordingly, despite the limited scale of the proposal in the context of the wider Green Belt, I find that it would result in a notable reduction in both the spatial and visual openness of the site. The openness of this part of the Green Belt would be significantly eroded.
25. I have had regard to the findings of the Inspector in the previous appeal relating to the site³. Whilst that decision was made under a different policy framework, I find the Inspector's conclusions regarding the effects of developing this parcel of land remain relevant. In particular, I see no reason to disagree with the earlier finding that the introduction of a dwelling on this currently undeveloped land would reduce spatial openness and diminish the perception of openness. Accordingly, I attach significant weight to those findings in my assessment.
26. For these reasons, I conclude that the proposal would cause significant harm to the openness of the Green Belt, to which I attach substantial weight in accordance with Policy GB6(2). It would also conflict with Policy DP13 of the TLP, insofar as that policy seeks to ensure that development in the Green Belt preserves its openness.

Ashdown Forest SPA

27. The appeal site lies within the zone of influence of the Ashdown Forest Special Protection Area (SPA), an internationally important nature conservation site designated for its populations of ground-nesting birds. The proposal would introduce an additional dwelling and therefore increase the number of people permanently residing within the zone of influence. Whilst the effect of a single dwelling would be limited, the principal concern is the cumulative effect of additional residential development on recreational pressure at the SPA. Mitigation is normally provided through a combination of Suitable Alternative Natural Greenspace (SANG) and Strategic Access Management and Monitoring (SAMM) measures.
28. The appellant has raised concerns regarding the Council's assessment of effects on the SPA and referred to other developments where mitigation was accepted. However, I am required to determine the appeal on the basis of the evidence before me, including the executed unilateral undertaking.

² 3339699 January 2025

³ 3332537 May 2024

29. The UU would secure the SAMM contribution and provide two alternative mechanisms intended to address the SANG requirement. Whilst I am satisfied that the SAMM contribution would be secured, this would not in itself mitigate the likely significant effect identified.
30. The uplift contribution route remains uncertain. No receiving site has been identified and there is insufficient information before me regarding how the contribution would be used to provide mitigation. Similarly, whilst the evidence indicates that capacity may be available at the Imberhorne Lane SANG, no capacity has been purchased and no agreement with Mid Sussex District Council is before me. The proposed mitigation therefore remains dependent upon future actions by third parties.
31. I have also had regard to the other examples relied upon by the appellant, including the Charters Towers development. However, those cases were determined on the basis of the specific mitigation proposed and secured. In the case of Charters Towers, this included specialist extra-care accommodation and substantial on-site recreational provision. By contrast, the mitigation before me remains dependent upon future actions by third parties and has not been secured with sufficient certainty. Consequently, those examples do not alter my conclusion that the proposal would fail to adequately mitigate its effects on the SPA.
32. Whilst there may be a reasonable prospect of securing the necessary mitigation, a reasonable prospect falls short of the certainty required when considering the integrity of a European site. Consequently, I am not satisfied that the likely significant effect on the SPA would be adequately mitigated. I therefore cannot conclude that the proposal would avoid an adverse effect on the integrity of the Ashdown Forest Special Protection Area. The proposal consequently conflicts with the requirements of the Habitats Regulations, the Framework and Policy DP19 of the TLP.

Other considerations

33. The proposal would constitute inappropriate development in the Green Belt and would cause significant harm to its openness. It would also fail to demonstrate that it would avoid an adverse effect on the integrity of the Ashdown Forest Special Protection Area. Policy GB6 of the Framework makes clear that substantial weight should be given to any harm to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt by reason of inappropriateness, and all other harm resulting from the proposal, is clearly outweighed by other considerations.
34. The Council is unable to demonstrate a five-year housing land supply, with an indicated supply of around 1.92 years. There is therefore undisputed evidence of a significant unmet housing need within the district. The proposal would deliver one additional dwelling and therefore make a contribution towards addressing that shortfall. I have had regard to the Framework's strong support for the delivery of housing which contributes towards identified needs. However, I have already taken that unmet need into account when considering Policy GB7 and, whilst the proposal satisfies that element of the policy, it nevertheless fails the overall requirements of GB7 and remains inappropriate development in the Green Belt. Having regard to the limited contribution that a single dwelling would make towards addressing the district's housing needs, I attach moderate weight to this benefit.

35. I also have regard to the fact that the proposal would deliver a self-build dwelling. From the evidence before me, I have no reason to dispute that there is an unmet need for self-build housing within the district. Furthermore, the UU contains robust provisions requiring the dwelling to be constructed and first occupied as a self-build/custom-build dwelling. However, the proposal would deliver only a single self-build dwelling and would therefore make only a very limited contribution towards meeting that need. Whilst this adds some weight beyond the delivery of a market dwelling, that additional benefit is limited. I therefore attach limited weight to this consideration.
36. The appellant also relies upon the proposed dwelling's energy efficiency credentials, accessible design, biodiversity benefits and design quality. However, there is no mechanism before me securing Passivhaus certification or compliance with the M4(3) standard, and there is limited evidence of any specific unmet need for accessible accommodation. Similarly, compliance with biodiversity net gain requirements is generally expected of development and there is no substantive evidence that ecological benefits materially beyond those required by legislation and policy would be delivered. Whilst the proposal would be a bespoke dwelling incorporating a number of positive features, there is limited evidence before me that it would achieve a standard of design quality that is genuinely exceptional or materially beyond that expected of well-designed development. Collectively, I attach only limited weight to these considerations.

Green Belt Balance

37. Taken together, there are considerations in this case which weigh in favour of the proposal, principally the contribution it would make towards meeting housing needs in a district with a significant housing land supply shortfall. There would also be more limited benefits arising from the provision of a self-build dwelling and the other matters identified above.
38. However, the proposal would constitute inappropriate development in the Green Belt, which is harmful by definition. It would also cause significant harm to the openness of the Green Belt. Policy GB6 of the Framework makes clear that substantial weight should be given to any harm to the Green Belt, including harm to its openness. Taking all matters into account, I find that the other considerations advanced in favour of the proposal do not clearly outweigh the harm to the Green Belt by reason of inappropriateness and the significant harm to openness that I have identified. Consequently, the very special circumstances necessary to justify development in the Green Belt do not exist.
39. The proposal consequently conflicts with Policies DP10 and DP13 of the TLP and with the Framework's policies for the protection of the Green Belt.

Other Matters

40. In line with the statutory duty under section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990, I have considered the effect of the proposal on the setting of the Grade II listed Frith Manor. Given the physical separation between the appeal site and the listed building, together with the limited intervisibility between them, I find that the proposal would preserve its setting and would not harm its significance as a designated heritage asset.

41. The Council is satisfied that the proposal would not result in unacceptable effects in respect of residential amenity, trees, drainage, parking provision or highway safety. Having regard to the evidence before me, I see no reason to reach a different conclusion. However, the absence of harm in these respects is a neutral factor and does not weigh in favour of the proposal.
42. The appellant raises a number of concerns regarding the Council's handling of the application, including suggestions that the Council assessed the wrong site and that limited weight should therefore be attached to its conclusions. However, I am satisfied that the appeal site and proposal were sufficiently understood by the Council during the determination of the application.
43. In any event, I am required to determine the appeal on its planning merits and have reached my own conclusions on the basis of the evidence before me. Consequently, any criticisms of the Council's decision-making process do not materially alter my findings on the main issues.
44. The appellant has also referred to a number of appeal decisions, including the previous appeal relating to this site⁴, the Beacon Platt decision⁵ and the Frith Manor Farm scheme⁶. I have had regard to those decisions, giving weight to them only insofar as they are relevant to the facts, evidence and policy context before me in this appeal.
45. The Beacon Platt decision was determined under the revised Framework and is therefore of greater relevance. However, in that case the Inspector concluded that the site satisfied all of the relevant grey belt criteria, including the sustainability requirements. I have reached a different conclusion on the evidence before me.
46. Similarly, whilst the Frith Manor Farm scheme demonstrates that cross-boundary mitigation can be acceptable in principle, the mitigation proposed in that case was materially different and more advanced than that before me. Accordingly, none of the appeal decisions relied upon causes me to reach a different conclusion on the main issues in this appeal.

Conclusion

47. For the reasons given above, I have found that the proposal would constitute inappropriate development in the Green Belt and would result in significant harm to its openness. I have also found that the site would not satisfy the requirements of Policy GB7 of the Framework and that the proposal would fail to demonstrate that it would avoid an adverse effect on the integrity of the Ashdown Forest Special Protection Area.
48. Whilst the proposal would provide some benefits, including the delivery of an additional dwelling in an area of significant housing need, those benefits do not amount to the very special circumstances necessary to justify inappropriate development in the Green Belt.
49. The proposal therefore conflicts with Policy CSP1 of the CS and Policies DP10, DP13 and DP19 of the TLP. For the reasons given above, the material

⁴ 3332537 May 2024

⁵ 3339699 January 2025

⁶ 3237774 March 2020

considerations do not indicate that a decision should be made other than in accordance with the development plan. Accordingly, the appeal is dismissed.

R. Lawrence

INSPECTOR